

EU II: Institutions of the EU (AUW)

Political Science — Master Notes · by Jakob V. Stangel

Required reading: Bulmer, Parker, Bache, George & Burns (2020), *Politics in the European Union*, OUP — ch. 12, "The Institutional Architecture." ($\triangle$ *Built deck-first: the reading PDF was not in the upload, so the section-by-section rests on the lecture deck + standard institutional facts. Drop the Bulmer chapter into Module 2/ and I'll do an enrichment pass — the reading adds detail on inter-institutional cooperation/conflict and the multi-level governance framing.*)

Theme of the lecture. This lecture maps the **institutional and legal machinery** behind the EU's **multi-level governance**: *who does what* (propose, decide, implement, enforce), *how* a decision becomes binding EU law, and *why* the shape of the architecture matters — it varies by policy area and it is exactly where the two theories from EU I (liberal intergovernmentalism vs neofunctionalism) fight it out. Three questions structure it: **Where is EU authority?** · **How does the EU make & enforce decisions?** · **Why does the architecture matter?**

★ **The heart of the lecture:** EU authority is **pooled, delegated and shared** across levels (EU ↔ member state) and across **bodies that each represent a different interest**. The "typical" way a law is made: **Commission proposes → Parliament + Council co-decide (the Ordinary Legislative Procedure, usually by Qualified Majority) → member states implement → Commission + CJEU enforce**. But this model **changes across policy areas** (some stay intergovernmental, e.g. foreign policy) and membership is **differentiated** (euro, Schengen).
Red thread: the split between **supranational** bodies (Commission · Parliament · CJEU) and **intergovernmental** bodies (European Council · Council) is the institutional form of the **neofunctionalism-vs-LI** debate.

Key concepts to apply: *pooled / delegated / shared authority · supranational vs intergovernmental bodies · the right of initiative · Ordinary Legislative Procedure (co-decision) · Qualified Majority Voting (55% / 65%) · conferral · subsidiarity · proportionality · exclusive / shared / supporting competence · regulations · directives · decisions · positive vs negative integration · mutual recognition (Cassis de Dijon) · differentiated integration.*

Where is EU authority?

Core: there is **no single sovereign** in the EU. Authority to **propose, decide, implement and enforce** is **distributed** — **pooled** (states decide together), **delegated** (handed to a common body), and **shared** — across **two levels** and several bodies.

- **Two levels:**
 - **EU level:** European Council · European Commission · Council of the EU · European Parliament · Court of Justice of the EU (CJEU).
 - **Member-state level:** national governments · legislatures · administrations · courts.
- **In plain terms:** the EU isn't a government sitting "above" the states; it's a **system** in which the same task (making and enforcing a rule) is split among European bodies *and* national ones. This is what

"multi-level governance" means.

The five EU bodies — each represents a different interest

Core: the genius (and the tension) of the design: each institution is built to **represent a different constituency**, so EU decisions have to reconcile them. Learn this table cold — it's the backbone of the whole lecture.

Body	Who sits there	Whose interest it represents	Core role
European Council	heads of state/government (27) + its President + Commission President	national governments — the top political level	sets strategic direction (not a legislator)
Council of the EU ("the Council")	national ministers (by policy area)	member-state governments	co-legislates ; coordinates national policy
European Parliament (EP)	directly elected MEPs	EU citizens	co-legislates + oversight
European Commission	Commissioners + the EU civil service	the Union-wide general interest	proposes law; implements ; enforces
CJEU	judges	the EU legal order	interprets & adjudicates EU law
<i>(watchdog)</i> Court of Auditors	auditors	sound use of EU money	audits EU finances

- The **supranational / intergovernmental split** (keep it in view for the theory section): **Commission** • **EP** • **CJEU** are **supranational** (they serve the Union as a whole, above the states); **European Council** • **Council** are **intergovernmental** (they *are* the states). Every EU decision is a negotiation between these two logics.

The basic architecture — the flow of a decision

Core: the bodies fit together in a **rough sequence**: direction → proposal → decision → implementation → enforcement.



European Council — governments set the direction

Core: the **summit of national leaders**. It is the EU's **political compass**, not its legislature — it decides *where the Union is going*, and unblocks the biggest fights.

- **Who:** the heads of state or government of the 27, plus the **European Council President** and the **Commission President**. *(Don't confuse it with the Council of the EU — ministers — or the Council of Europe, a separate non-EU human-rights body from EU I.)*
- **What it does:** defines **broad political priorities**; provides **strategic direction**; **resolves major political disagreements** that ministers can't; gives "**political impetus**" to integration.
- **Why it's the intergovernmental heart:** it is literally the **national governments** in the room. In an LI reading, this is where the states — the "masters of the treaty" — steer.

European Commission — the engine of EU policy

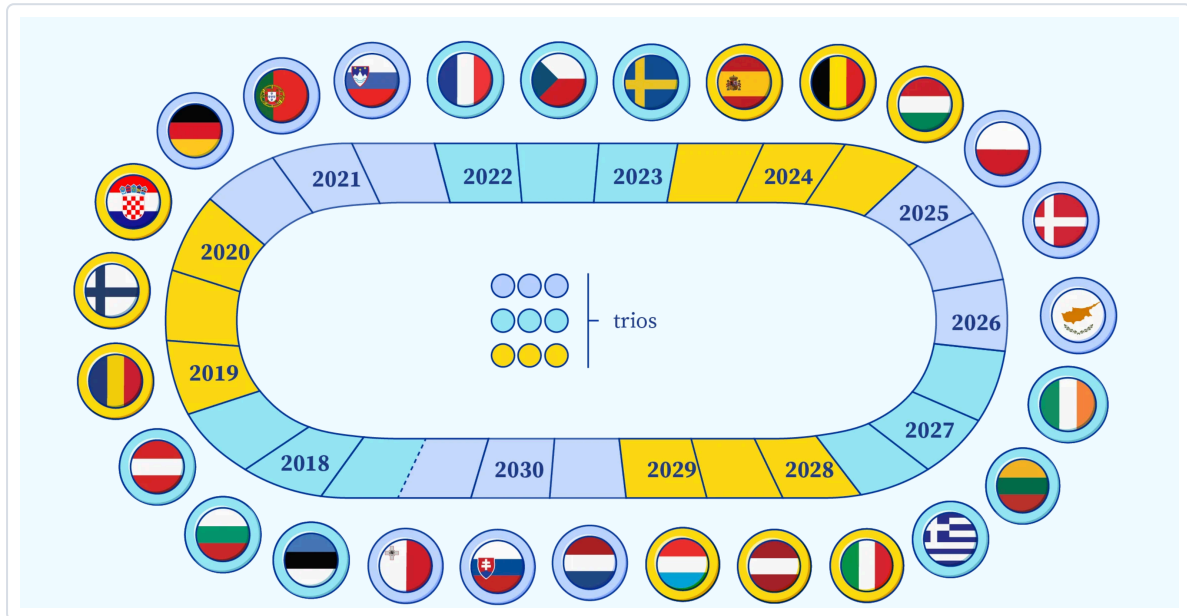
Core: the EU's **executive and its motor**. Crucially, it holds the **right of initiative** — it **proposes** almost all EU legislation — and then **implements** and **polices** it. It represents the **Union-wide interest**, not any one country.

- **Four jobs** (PROPOSE · EXECUTE · ENFORCE · REPRESENT):
 1. **Proposes** — **initiates most EU legislation** and develops policy (the **right of initiative** — a huge power: it sets the agenda).
 2. **Executes** — manages EU **programmes and funding**; implements policy.
 3. **Enforces** — monitors compliance and can launch **infringement proceedings** against a state that breaks EU law.
 4. **Represents** — speaks for the EU **internationally** where it has competence (e.g. trade).
- **Why it's the supranational engine:** its whole job is to think for the **Union as a whole**. In a neofunctionalist reading, the Commission is the "**cultivated spillover**" actor — the Eurocrat that pushes integration forward.

Council of the EU — member states as legislators

Core: the **national ministers**, acting as the EU's **other legislative chamber** (alongside the EP). It is **not one fixed group of people** — it changes membership by topic.

- **Who / configurations:** national ministers meet in different **configurations by policy area** — Agriculture, Environment, Finance (ECOFIN), Competitiveness, etc. The relevant minister shows up for the relevant dossier.
- **What it does:** represents **member-state governments**; **co-legislates** with the EP; coordinates national policies; decides by **agreed voting rules** (usually QMV).
- **The rotating presidency — in "trios."** The chair of the Council rotates among member states every 6 months, organised into **trios** of three countries that plan an 18-month programme together.



How to read it. The presidency isn't a person or a permanent seat — it **passes around the member states**, three at a time. Each **trio** (one colour) coordinates an 18-month agenda so priorities carry across the three six-month chairs. It's a concrete emblem of the Council's **intergovernmental, member-state-driven** character.

- **The Council is more than the ministers** (a key exam point): most of the real work happens **below** the ministers, among **diplomats and officials**, *before* ministers ever meet:

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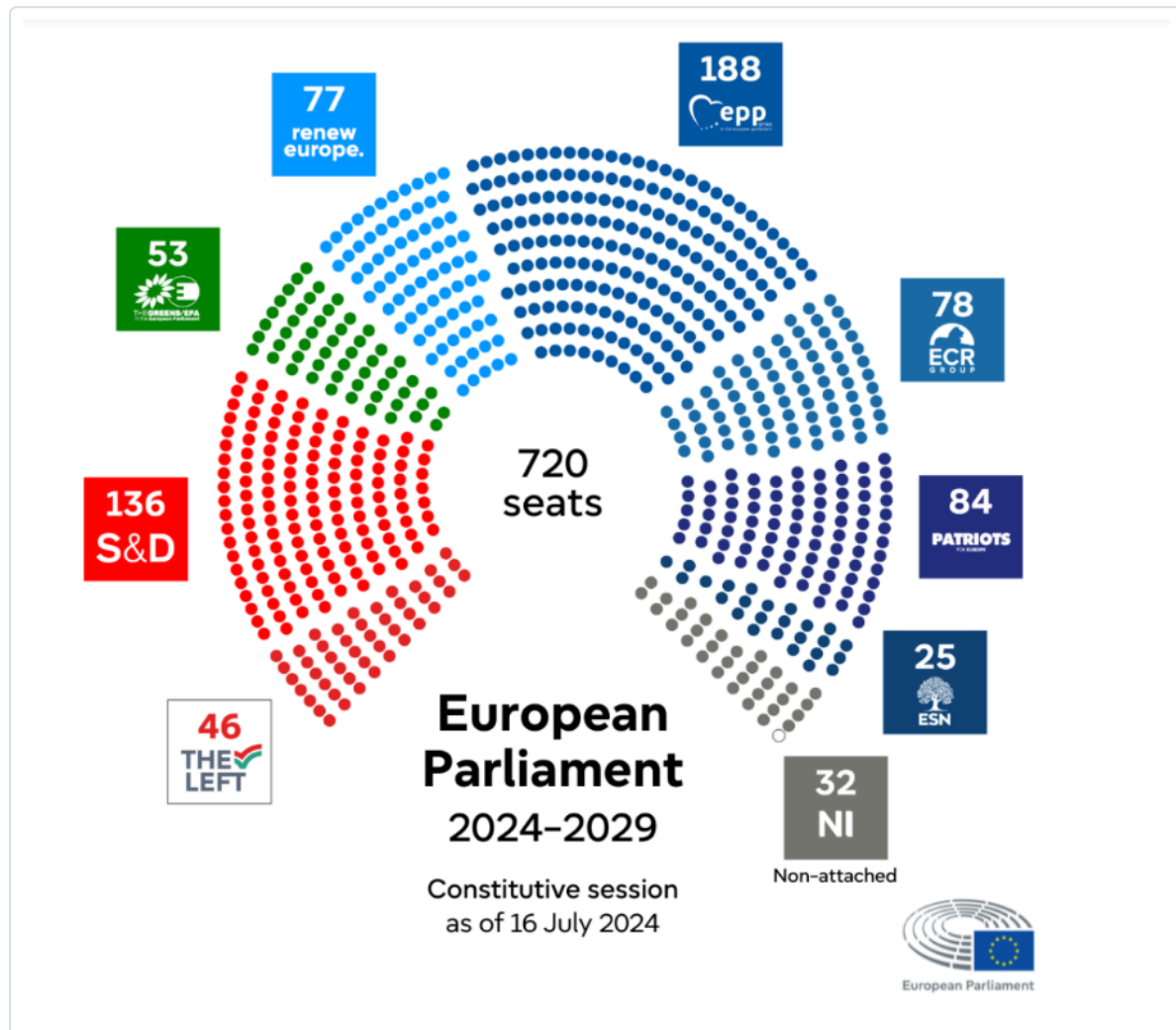
National ministers
    ↑ (formal adoption)
COREPER I & II   (committees of member states' permanent representatives / ambassadors)
    ↑
Working parties + national officials   (the technical bargaining)
    ↑
Council Secretariat
  
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→ "**Much of the bargaining happens among diplomats before ministers meet.**" By the time ministers sign, most issues are already settled. (*This is exactly the "bureaucratic interpenetration" neofunctionalism talks about — national officials in constant contact.*)

European Parliament — citizens enter EU law-making

Core: the EU's only directly elected body — the citizens' chamber. Once a weak "talking shop," it has gained real power through successive treaties and now co-legislates as an equal with the Council.

- **Who:** MEPs, directly elected every five years, representing EU citizens (organised into cross-national political groups, not national delegations — a group needs ≥ 23 MEPs from ≥ 7 states).
- **What it does:** co-legislates with the Council under the Ordinary Legislative Procedure; can amend or block legislation; oversees the Commission (it approves and can censure it).



How to read it. The hemicycle seats MEPs left-to-right by ideology, grouped into transnational political families, not by country. After the 2024 election the centre-right EPP (188) is the largest group, then the centre-left S&D (136); the centre holds a working majority (EPP + S&D + Renew) but the right (Patriots, ECR, ESN) grew. → Illustrates that the EP is a genuine, party-political parliament — the "citizens' interest" the deck's table names.

Court of Justice of the EU — authority through law

Core: the EU's supreme court. By interpreting the treaties and EU law, it ensures the law means the same thing everywhere — and in doing so it shapes integration itself.

- **What it does:** interprets the treaties and EU legislation; ensures uniform application across all states; resolves disputes; and draws the boundary between EU and national authority.

- **Why it matters for integration: "courts can shape integration."** By deciding what EU law requires, the CJEU can push integration forward without any new treaty — the neofunctionalist "integration through law." (*Not to be confused with the **European Court of Human Rights**, which belongs to the Council of Europe — see EU I.*)

EU authority rests where the EU has *competence*

Core: the EU has **no general power to act** — only the powers the treaties give it, and those come in three strengths.

Competence	Who may legislate	Examples
Exclusive	only the EU	customs union · the single currency · competition rules · common commercial (trade) policy · fisheries conservation · certain international agreements
Shared	EU and member states (states act where the EU hasn't)	internal market · environment · transport · consumer protection
Supporting	member states legislate; the EU only supports/coordinates	culture · education · tourism (<i>and areas kept largely national — health systems, taxation, defence</i>)

Constitutional limits — conferral, subsidiarity, proportionality

Core: three principles **fence in** EU power so it can't simply expand at will.

1. **Conferral** — the EU can act **only where the treaties give it competence**. No treaty basis → no EU action. (*The default is that power stays national.*)
2. **Subsidiarity** — in **non-exclusive** areas, the EU should act **only when the objective can't be adequately achieved by member states** acting alone (decisions taken as close to citizens as effective).
3. **Proportionality** — EU action must **not go beyond what is necessary** to achieve its aim (use the lightest tool that works).

How does the EU make & enforce decisions?

How an EU law actually gets made — the Ordinary Legislative Procedure

Core: the "typical" model, also called **co-decision**: the **Commission proposes**, and the **Parliament and Council must both agree** — as co-equal legislators — before it becomes law.

- **The steps:**
 1. **Commission** — **agenda-setting**: develops and **proposes** the legislation (right of initiative).
 2. **European Parliament + Council of the EU** — examine and **amend** the proposal (each can propose changes).

3. **Negotiation / readings** — the two co-legislators reconcile their versions (often in "trilogue" with the Commission).
 4. **Agreement** — **both** the EP **and** the Council approve the **same text**.
 5. **Adopted** → **implemented & enforced**.
- **The key feature: Parliament and Council co-decide as equals** — the citizens' chamber and the states' chamber must *both* say yes. Either can **amend or block**. → *This co-equal status is a major **deepening** of supranational democracy won over successive treaties (recall EU I: Maastricht's codecision, extended since).*

Qualified Majority Voting (QMV) — how the Council decides

Core: in the Council, most decisions pass by **QMV, not unanimity** — a **double majority** of states *and* population. The radical implication: a **national government can be outvoted** and still be bound.

- **The double threshold** — a proposal passes with:
 - **55% of member states** (i.e. at least 15 of 27), **AND**
 - states representing **65% of the total EU population**.
- **Why the two locks:** the **55% of states** protects the **many smaller** countries (one state, one vote); the **65% of population** protects the **few large** ones (Germany, France...). A measure needs **both** kinds of majority. (*A blocking minority therefore needs at least 4 states — so no 3 big states can veto alone.*)
- **Unanimity still rules the sensitive areas** — **foreign & security policy, taxation, defence, enlargement** — where **every state keeps a veto**.
- **Why it matters (the deck's exercise):** under **QMV**, a **Danish farmer's** government can be **outvoted** by a coalition of others — influence depends on building **coalitions**, and small states punch above their weight per capita. Under **unanimity**, *every* government (however small) holds a **veto**, so the **French farmer's** government could block anything it dislikes. → **QMV = supranational** (states can lose); **unanimity = intergovernmental** (states stay in control).

After adoption — who implements? (adoption ≠ implementation)

Core: the EU **makes** the rules but rarely **applies** them itself. **Implementation is mostly national** — a defining feature of the EU's "**small state**" design (recall EU I: most EU law is enforced by national officials).



Not all EU law works the same way — regulations, directives, decisions

Core: the EU has **three main legal instruments**, and they create **different relationships** between EU and national authority. Know the differences — a classic exam distinction.

Instrument	Binding force	National transposition?
Regulation	directly applicable — becomes law in every state as written , automatically	No — no national law needed
Directive	binding as to the result/objective , but leaves the means to states	Yes — states must transpose it into national law (choosing <i>how</i>)
Decision	binding in full on specific addressees (a state, company or individual)	No — applies directly to whom it names

- *In plain terms:* a **regulation** is a Union-wide law imposed identically everywhere (strongly supranational); a **directive** sets a goal but lets each state legislate its own route (a softer, more flexible tool); a **decision** is a targeted order. **Different instrument = different degree of central control.**

Integration through legislation *and* through courts (positive vs negative)

Core: the EU integrates in **two ways** — by **building** common rules (positive) and by **striking down** national barriers (negative, often via the CJEU).

- **Positive integration** — EU institutions **create common rules**: legislation, **harmonization**, common standards. (*Building a shared framework.*)
- **Negative integration** — EU law **removes national barriers**: the **CJEU** interprets the treaties so that incompatible national rules **fall away**. (*Clearing obstacles to the four freedoms.*)
- **Landmark case** — *Cassis de Dijon* (1979). Germany blocked a French blackcurrant liqueur for being below its minimum alcohol content. The CJEU ruled the barrier illegal and established the **principle of mutual recognition**: a good **lawfully sold in one member state** may in principle be **sold throughout** the EU, even without harmonized rules. → *Illustrates: negative integration through courts* — the CJEU removing a national barrier to **free movement of goods**, deepening the single market without any new legislation. (*A textbook neofunctionalist "integration through law."*)

Who enforces EU rules?

Core: enforcement, like implementation, is **shared** between EU and national actors.

Enforcer	Role
European Commission	monitors member-state compliance; brings infringement proceedings
National authorities	enforce EU rules domestically
National courts	apply EU law in individual cases (and can refer questions to the CJEU)
CJEU	authoritative interpretation ; settles legal disputes
European Court of Auditors	audits EU finances

Why does the architecture matter?

Core: the "typical" model (Commission → EP + Council → law) is **not universal**. The architecture shifts by policy area, and membership itself is **differentiated** — so "the EU" is really several different decision-systems at once.

- **It varies by policy area.** The standard supranational model dominates the **single market** and most regulation. But some areas stay **intergovernmental** — above all the **Common Foreign & Security Policy (CFSP)**:
 - driven by the **European Council + Council** (the member states);
 - **unanimity** generally required;
 - **more limited roles** for Commission, Parliament and CJEU. → *Where the EU is more supranational, integration can run ahead of states; where it's intergovernmental, states stay in charge. Same Union, different rules.*

Differentiated integration — common *and* varied

Core: not every member state participates in every policy the same way. The EU can be **both common and differentiated** — a patchwork, not a uniform bloc.

- **Euro** — **not all** EU members use the single currency (Denmark opted out; others haven't joined).
- **Schengen** — **differentiated** participation in the passport-free travel area (some EU states out; some non-EU states — Norway, Switzerland — in).
- **Enhanced cooperation** — a **group of states can move ahead** in an area without the others. → *This flexibility is how a Union of 27 very different states keeps deepening without forcing everyone to move in lockstep — recall the deepening/widening tension from EU I.*

★ Integration theories & the institutional architecture

Core: the payoff — the lecture ties the machinery straight back to EU I's two theories. The **supranational vs intergovernmental** split among the institutions **is** the LI-vs-neofunctionalism debate made concrete.

	Liberal Intergovernmentalism	Neofunctionalism / Supranationalism
Key actors	member-state governments	supranational bodies & non-state actors
Key mechanism	interstate bargaining	spillover
Key EU bodies	European Council + Council	Commission + EP + CJEU
View of integration	stays under state control	can develop beyond state control

- **How to argue with it** (the deck's exercise — apply each theory to a feature):
 - **QMV in the Council** → *LI*: states **agreed** the rules and still bargain (and kept unanimity for the sensitive stuff); *NF*: accepting you can be **outvoted** is states **losing control** to a supranational majority.
 - **Commission's right of initiative** → *LI*: a convenient agenda-setter serving state-agreed goals; *NF*: the engine of **cultivated spillover**, shaping outcomes.
 - **CJEU + *Cassis de Dijon*** → *NF*: **integration through law**, courts removing barriers autonomously; *LI*: states tolerate it because it serves their **collective** interest in a working market.
 - **CFSP + unanimity** → *LI*: proof states keep the **veto** where sovereignty is dearest; *NF*: the **limit** of spillover — an area still "**encapsulated**."
- **The takeaway**: you can read the **same institution** two ways. The architecture is contested terrain precisely because **whether the supranational or the intergovernmental bodies dominate a policy area** decides whether integration is **state-controlled** or **self-propelling**.

★ Fun facts & memorable details (EU II: Institutions)

Sticky bits from the institutions lecture.

- **Three "Councils," endlessly confused** — the **European Council** (leaders, sets direction), the **Council of the EU** (ministers, legislates), and the **Council of Europe** (a *separate* non-EU human-rights body, from EU I). Mixing them up is the classic exam slip.
- **The Commission has the "right of initiative"** — almost **no EU law can start without it**. Whoever sets the agenda has quiet power; that's why neofunctionalists call the Commission the **engine**.
- **A government can be outvoted and still bound** — under **QMV**, lose the vote and the law still applies to you. That single fact is the sharpest evidence that the EU is **more than** an ordinary international organisation.
- **The real deals are cut by diplomats, not ministers** — by the time ministers meet, **COREPER** ambassadors and working parties have usually pre-cooked the agreement. The photographed handshake is often theatre.
- **The presidency is a relay baton, not a throne** — it **rotates every six months** in **trios**; no country "runs" the EU.
- ***Cassis de Dijon*** — a **blackcurrant liqueur** that quietly built the single market: from a squabble over French crème de cassis came **mutual recognition**, one of the most important integration principles, made by **judges**, not legislators.

- **A regulation vs a directive** — a regulation is the same law everywhere the day it passes; a directive just sets the **goal** and lets 27 parliaments each find their own way there. Same Union, very different grip.
-